

CITIZENSHIP PROVISIONS

Articles 5–11 • The Citizenship Act, 1955 • CAA

Part II of the Constitution | India follows **Single Citizenship** (borrowed from the **UK Constitution**)

- Headings & Definitions
- Explanations
- Highlighter = Key Facts
- 🎯 Exam Tip
- ✗ Common Mistake
- 🧠 Memory Trick

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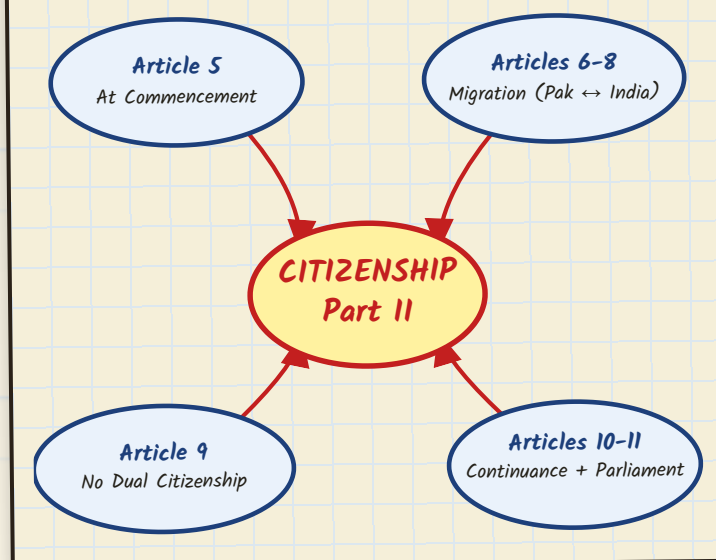
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SETTING THE STAGE — PART II, ARTICLES 5–11

The citizenship provisions sit in **Part II** of the Constitution, written between **Article 5** and **Article 11**. India follows **Single Citizenship** — unlike countries with dual (federal + state) citizenship — and this idea was borrowed from the **UK Constitution**.



Fig 1: Citizenship Provisions — Mind Map



Article 5 — Citizenship at the Commencement of the Constitution

Article 5 decides **who was a citizen when the Constitution came into force, i.e. on 26 January 1950**. Any **ONE** of these three conditions had to be true:

Condition	What It Means
Birth	You were born in India
Parentage	Either parent (mother or father) was born in India
Residence	You had been an ordinary resident in India for the last 5 years before 26 January 1950

Exam Tip

Article 5's three conditions are joined by "OR", not "AND" — satisfying **any one** of birth / parentage / 5-years' residence was enough to be a citizen at commencement.

Common Mistake

Don't assume you needed to satisfy **all three** conditions under Article 5 — meeting even **one** condition (say, just being born in India) was sufficient.

 Why do Articles 5–8 even exist? (tap to expand) ▼



Memory Trick

Article 5 = "5 conditions to check at the 1950 gate" — think of it as the entry gate to Indian citizenship: born here, OR parent born here, OR 5 years resident here.

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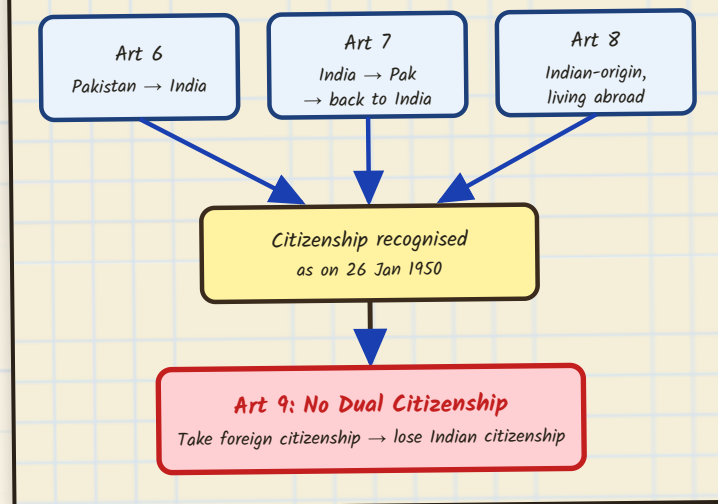
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MIGRATION PROVISIONS — ARTICLES 6, 7 + 8

These three Articles were framed for people who moved across the newly-drawn India–Pakistan border around Independence. They no longer have practical relevance today — just remember the one-line theme of each, don't dig deeper.

Article	Subject Matter
Article 6	Citizenship of certain persons who migrated to India from Pakistan
Article 7	Rights of citizenship of certain migrants to Pakistan (persons who went to Pakistan and then came back to India)
Article 8	Rights of citizenship of certain persons of Indian origin residing outside India (in some other country — nothing to do with Pakistan)

 Fig 2: How Articles 6–9 Connect



Article 9 – No Dual Citizenship

Articles 5, 6, 7, 8 don't exist as active/operative provisions today — they were relevant only for that transition period. Article 9 is the one still conceptually important: if a person voluntarily acquires citizenship of a foreign country, that person will not be a citizen of India.



"There is no provision of dual citizenship in India."



Common Mistake

Don't confuse things like OCI cards with dual citizenship — the source rule under **Article 9** is clear: India has no dual citizenship provision at all.



Exam Tip

For Articles 5-8, examiners test only the surface-level line written in each Article — don't over-read into them, since they applied only around Independence-time migration.



Quick Way to Remember

Articles 6, 7, 8 are all about *where people were physically going* — Pakistan→India, India→Pakistan→India, or living in some other country altogether.

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ARTICLES 10-11 + THE MOVE TO THE CITIZENSHIP ACT

Article 10 – Continuance of the Rights of Citizenship

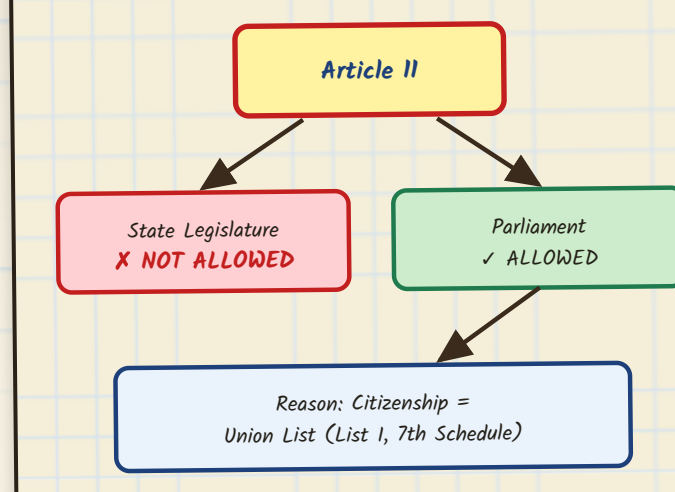
Once you become an Indian citizen, that citizenship *continues*. It isn't the case that some new law can be made overnight to suddenly debar you from citizenship.

Article 11 – Parliament's Exclusive Power

Article 11 says that only Parliament has the power to make laws regarding citizenship — not the State Legislature. This is because Citizenship is a subject in the Union List (List I of the Seventh Schedule).



Fig 3: Who Can Legislate on Citizenship?



✗ Common Mistake

Don't think citizenship laws can be made at the state level in any circumstance — Article 11 hands this power **exclusively to Parliament**, because it's a Union List subject.

📖 Quick Recap: Why does the "List" matter here? (tap to expand) ▼

From the Constitution to the Citizenship Act

Articles 5 through 8 dealt with citizenship **at Independence**. The law that governs citizenship **today** is an Act of Parliament — the **Citizenship Act** — made using the very power granted by Article 11.

● Before 26 Jan 1950

Articles 5–8 govern who is a citizen at the transition around Independence.

● 26 Jan 1950

Constitution commences — Article 5's conditions apply from this date.

● 1955

Parliament enacts the **Citizenship Act** under its Article 11 power — this is the law that operates today.

● Later

The Citizenship (Amendment) Act, i.e. the **CAA**, amends this 1955 Act — details on Page 5.



The Citizenship Act, 1955 = the law that governs citizenship rules TODAY!



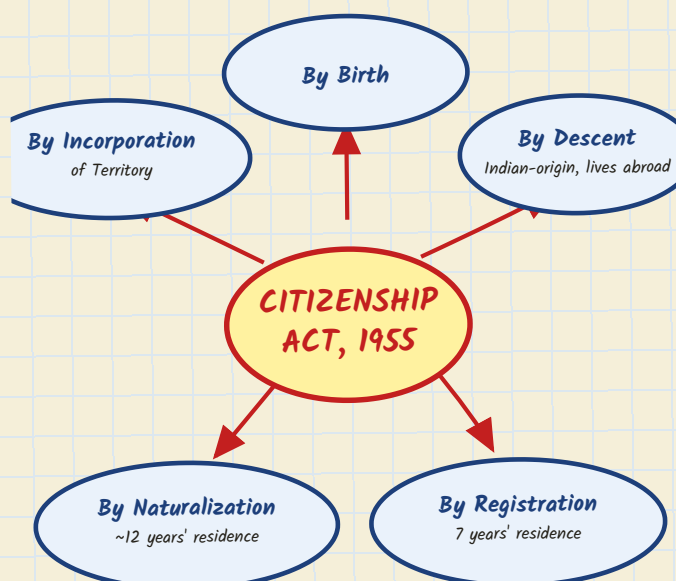
Memory Trick

Articles 5–8 = "the past" (Independence-time rules); the Citizenship Act, 1955 = "the present" (made possible by Article 11's Union-List power).

ACQUIRING CITIZENSHIP — THE CITIZENSHIP ACT, 1955

The **Citizenship Act** deals with the present-day rules. It lays down five ways in which a person can acquire Indian citizenship.

Fig 4: Five Ways to Acquire Citizenship



Mode	Key Requirement
By Birth	Being born (as commonly understood under the Act)
By Descent	Person is of Indian origin but currently lives in another country
By Registration	Person of Indian origin holding another country's citizenship, or whose parents were once Indian citizens — can apply after 7 years of residence in India; also available if one's husband is an Indian citizen, again after 7 years' residence
By Naturalization	Requires living in India for approximately 12 years
By Incorporation of Territory	Applies when India takes over a new territory — citizenship provisions are then framed for the people living there

Birth → Descent → Registration (7 yrs) → Naturalization (12 yrs) →

Incorporation of Territory

 Incorporation of Territory – a hypothetical example (tap to expand) ▼

✗ Common Mistake

Don't mix up the residence periods — **Registration** needs 7 years' residence, while **Naturalization** needs roughly 12 years. They are two separate routes with different timelines.

🎯 Exam Tip

Remember the 5 modes with the acronym **B-D-R-N-I**: Birth, Descent, Registration, Naturalization, Incorporation of territory.



🧠 Memory Trick

Registration = "7 for the connected" (Indian origin/spouse route); Naturalization = "12 for the newcomer" (no prior Indian link needed).

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LOSING CITIZENSHIP + THE CAA Three Ways to Lose Citizenship

Mode	Meaning
Renunciation	You voluntarily give up your Indian citizenship yourself
Deprivation	Your Indian citizenship was obtained fraudulently
Termination	E.g., you took another country's citizenship without informing, or you were helping someone in another country — citizenship is then taken away

✗ Common Mistake

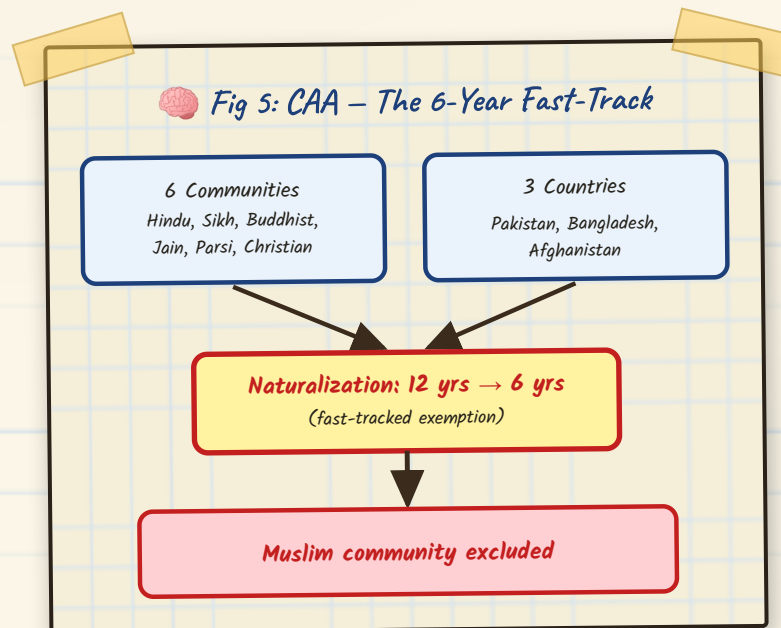
Don't treat renunciation, deprivation and termination as the same thing — **renunciation** is voluntary, **deprivation** is about fraud in obtaining citizenship, and **termination** follows

from actions like secretly taking foreign citizenship or aiding another country.

The Citizenship (Amendment) Act – CAA

The CAA amends the **Citizenship Act of 1955**. It covers **six communities** — Hindus, Sikhs, Buddhists, Jains, Parsis, and Christians — coming from **three countries**: Pakistan, Bangladesh, and Afghanistan.

- These six communities from these three countries are exempted from the normal rules of citizenship **by naturalization**
- Instead of the usual **12 years**, they only need to live in India for **six years**
- This is the reason for the controversy around the CAA — it **excludes the Muslim community**



"This is the reason for the controversy, as it excludes the Muslim community."

What exactly does the CAA change? (tap to expand) ▼



Memory Trick

CAA in three numbers: **6** communities, **3** countries, **6** years (down from 12).

★ Exam-Ready Summary

- **Citizenship provisions: Part II, Articles 5–11**

- **Type of citizenship:** Single citizenship (from the UK Constitution)
- **Article 5:** birth OR parent born in India OR 5 years' residence before 26 Jan 1950
- **Articles 6–8:** migration-related provisions (Pakistan ↔ India, Indian-origin abroad) — historical, at commencement only
- **Article 9:** no dual citizenship
- **Article 10:** continuance of citizenship rights
- **Article 11:** only Parliament can legislate on citizenship (Union List, List I)
- **Citizenship Act, 1955:** Birth, Descent, Registration (7 yrs), Naturalization (~12 yrs), Incorporation of Territory
- **Loss of citizenship:** Renunciation, Deprivation, Termination
- **CAA:** 6 communities, 3 countries, naturalization cut from 12 to 6 years — controversial for excluding Muslims



Exam Tip

If asked "what does the CAA do?" — just recall three numbers: **6 communities, 3 countries, 6 years** (instead of 12).

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 Print Notes

Indian Polity · Citizenship Provisions — SSC / UPSC / State PCS Exam Notes

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